SOP – LEGAL ADIVSORY

[CONFIDENTIAL]

[UTTHUNGA]

[IndiQube, South Summit, South End Rd, Vijayarangam Layout, Bengaluru, Karnataka 560004]

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CHANGE HISTORY

This section describes the details of changes that have resulted in the current document.

SL. No.	Document Version No.	Change Description	Reason For change	Date Prepared By	Date Reviewed By	Date Approved By
1	0.1	Draft	New SOP	05-Feb-25 Santosh		
2	Issue B Version 1.0	New process			11-Feb-25 Giridhar K	Sanmangala MS 14-Feb-25
3	Issue C Version 1.0	Review of document	New version update of IMS	Anitha N 01-Aug-2025	Santosh V 08-Aug-25	Sanmangala M S 14-Aug-2025

1. Purpose

The purpose of this document is to define and standardize the legal advisory processes within the organization. It ensures that all legal activities, including contract management, intellectual property protection, regulatory compliance, dispute resolution, and corporate governance, are conducted efficiently, mitigating legal risks and ensuring compliance with applicable laws and regulations.

2. Scope

This process applies to all legal operations within the organization

3. Abbreviations

EEO	Equal Employment Opportunity
GDPR	General Data Protection Regulation
HIPAA	Health Insurance Portability and Accountability Act
HR	Human Resources
IP	Intellectual Property
IT	Information Technology
IT Act, 2000	Information Technology Act, 2000
IT Security	Information Technology Security
ISO	International Organization for Standardization
NDA	Non-Disclosure Agreement
PDP Bill	Personal Data Protection Bill
RBI	Reserve Bank of India
SEBI	Securities and Exchange Board of India
SEZ	Special Economic Zone
SM	Senior Management
STPI	Software Technology Parks of India
TRAI	Telecom Regulatory Authority of India

4. Terms and Definitions

a. Agreement - A legally binding document outlining terms and conditions between parties.

b. Arbitration - A dispute resolution process where an impartial third party makes a binding decision.

c. Compliance - Adherence to legal, regulatory, and organizational policies.

d. Contract - A written or spoken agreement that is enforceable by law.

e. Corporate Governance - The system by which companies are directed and controlled, ensuring accountability.

f. Cybersecurity - Measures taken to protect digital assets and sensitive information from cyber threats.

g. Data Breach - Unauthorized access, disclosure, or loss of confidential or personal data.

h. Dispute Resolution - The process of resolving disagreements through litigation, arbitration, or mediation.

i. Employment Law - Legal regulations governing employer-employee relationships.

j. GDPR (General Data Protection Regulation) - A European regulation governing data protection and privacy.

k. Intellectual Property (IP) - Legal rights over creations of the mind, such as patents, trademarks, and copyrights.

l. Litigation - The process of taking legal action in court.

m. Mediation - A non-binding process where a neutral third party facilitates dispute resolution.

n. Non-Disclosure Agreement (NDA) - A contract that restricts the disclosure of confidential information.

o. Regulatory Compliance- Ensuring adherence to laws, regulations, and industry standards.

p. Risk Management - The identification, assessment, and mitigation of legal risks.

q. Whistleblower Mechanism - A system that allows employees to report unethical or illegal activities confidentially.

5. Responsibilities

a. Director legal

- Draft, review, and negotiate contracts with clients, vendors, and partners.
- Manage intellectual property rights (patents, copyrights, trademarks) and disputes.
- Ensure regulatory compliance with IT laws, labor laws, and corporate governance requirements.
- Handle litigation, arbitration, and dispute resolution.
- Provide legal advice on cybersecurity, employment law, and international operations.
- Secure necessary licenses, regulatory approvals, and compliance certifications.
- Assist in policy development and corporate ethics initiatives.

b. Human Resources

- Comply to HR laws
- Draft and enforce employment contracts, HR policies, and labor law compliance.
- Manage employee disputes, harassment cases, and disciplinary actions.

c. IT Security Team

- Implement cybersecurity frameworks and incident response plans.
- Ensure data security, access control, and encryption of sensitive legal documents.
- Support compliance with IT security standards (ISO 27001, NIST, etc.).

d. Finance Team

- Ensure financial regulatory compliance (tax laws, SEBI, RBI, etc.).
- Manage financial risks in contracts, and transactions.

e. Senior Management

- Approve legal policies, corporate governance frameworks, and regulatory actions.
- Ensure alignment of legal processes with business objectives.

f. CTO

- Evaluate Cyber security and emerging technologies for risks
- Advice on best practices for Intellectual property protection

6. RACI

Process	Responsible	Accountable	Consulted	Informed
Contracts and Agreements	Director Legal	Director Legal	Finance & Sales	Senior Management
Intellectual Property Protection	Director Legal	Director Legal	CTO	Senior Management
Regulatory Compliance	Respective department	Respective department	Director Legal	Senior Management
Data Protection and Privacy	IT Security	Business Units	Director Legal	Senior Management
Dispute Resolution and Litigation	Director Legal	Director Legal	Senior Management	Respective Stakeholders
Corporate Governance	Legal Team	Senior Management	Finance	HR, Business Units
Employment and Labor Laws	HR	HR	Director Legal	IT Security, Business Units, Senior Management
Cybersecurity and Technology Risks	IT Security	CTO	Director Legal	HR, Business Units, Senior Management
International Operations & Cross-Border Issues	Director Legal	Director Legal	Finance	HR, IT Security, Business Units, Senior Management

Licensing and Regulatory Approvals	Director Legal	Director Legal	Finance, Admin team	HR, IT Security, Business Units
Ethical and Social Responsibility	HR	HR	Director Legal, Business Units	HR, Senior Management
Intellectual Property Transactions	Director Legal	Director Legal	PE team, Business Units	HR, IT Security, Senior Management
Framing Policies	Director Legal	Director Legal	PE team, Business Units	HR, IT Security, Senior Management

7. SIPOC

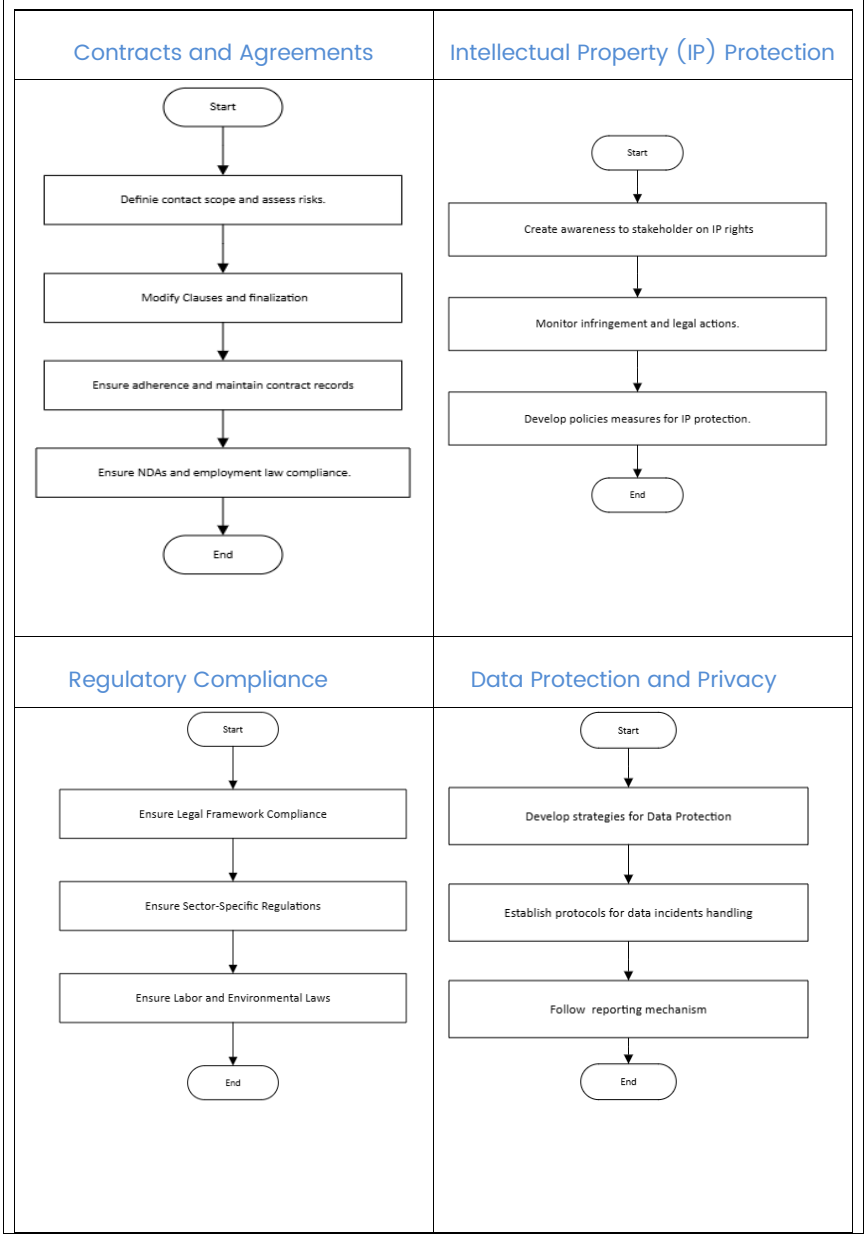
Supplier	Input	Process and Control		Output	Customer
		Process	Control		
Sales, Clients	Contract requirements, legal guidelines	Contracts and Agreements	Drafting, reviewing, negotiating, and finalizing contracts	Signed contracts, agreements	Clients, Vendors, Business Units
CTO External Counsel	IP filings, prior art research	Intellectual Property (IP) Protection	Filing patents, managing IP disputes, enforcing IP rights	Registered patents, resolved disputes	CTO, Legal Dept.
Government Bodies, Standards bodies	IT laws, data protection regulations	Regulatory Compliance	Implementing compliance measures, conducting audits	Compliance reports, audit results	Regulators, Management
IT Security, HR, Compliance	GDPR, HIPAA, PDP Act guidelines	Data Protection and Privacy	Implementing policies,	Compliance reports, data	Employees, Clients, Regulators

			handling breaches	breach handling	
Employees, Clients, Legal Teams	Dispute cases, legal documents	Dispute Resolution and Litigation	Mediating disputes, preparing legal defenses, arbitration	Settlements, case resolutions	Employees, Clients, Courts
Board Members, Shareholders	Corporate laws, governance frameworks	Corporate Governance	Drafting policies, ensuring legal compliance	Governance reports, board resolutions	Board, Shareholders, Regulators
HR, Labor Authorities	Employment contracts, labor laws	Employment and Labor Laws	Drafting policies, resolving employee disputes	Compliance reports, dispute resolutions	Employees, Government Bodies
IT Security, Compliance	Cybersecurity frameworks, incident reports	Cybersecurity and Technology Risks	Implementing security policies, incident response	Risk assessments, incident reports	IT Dept., Clients, Regulators
Global Legal Teams, Compliance	International trade laws, tax regulations	International Operations & Cross-Border Issues	Reviewing global contracts, handling cross-border transactions	Legal compliance reports, approved contracts	Business Units, Global Clients
Government Bodies, Legal Teams	Licensing requirements, regulatory standards	Licensing and Regulatory Approvals	Filing for licenses, renewing approvals	Approved licenses, compliance certificates	Business Units, Regulators
CSR Teams, Compliance	Corporate ethics guidelines, CSR laws	Ethical and Social Responsibility	Implementing CSR policies, monitoring	CSR reports, compliance audits	Employees, Regulators, Public

			whistleblower cases		
External Counsel, IT Team	Licensing agreements, open-source policies	Intellectual Property Transactions	Reviewing agreements, ensuring compliance	Approved licenses, technology transfer records	Product Teams, Clients
Compliance, Legal Teams	Industry best practices, legal frameworks	Framing Policies	Developing and updating policies	Company-wide legal policies	Employees, Business Units

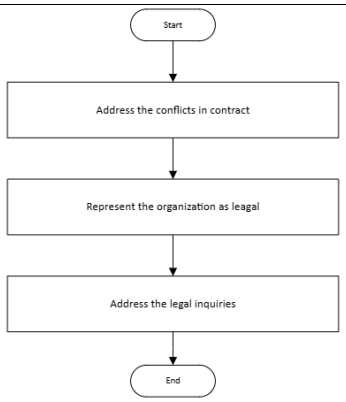
8. Overall Process Flow Chart

a. Legal Advisory process

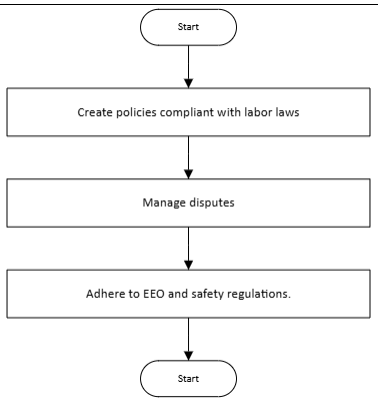


The contents of this documents are sensitive to this organization and cannot be shared without prior permission from Quality Dept. and NDA with any external organization

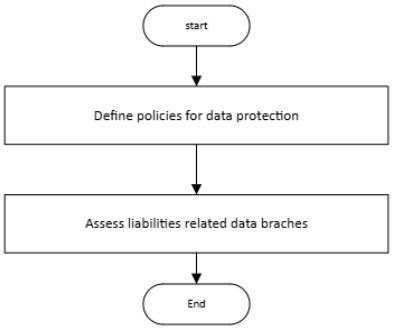
Dispute Resolution and Litigation



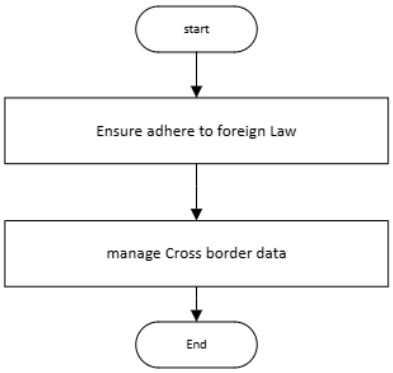
Employment and Labor Laws



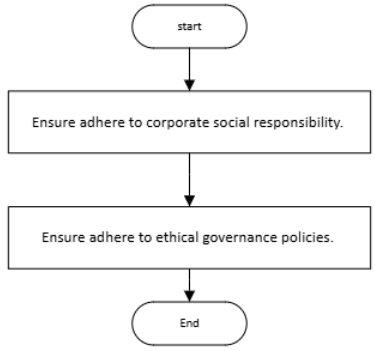
Cybersecurity and Technology Risks



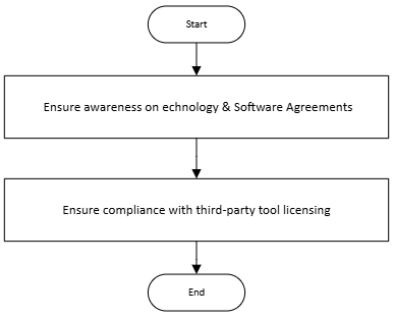
International Operations and Cross-Border Issues



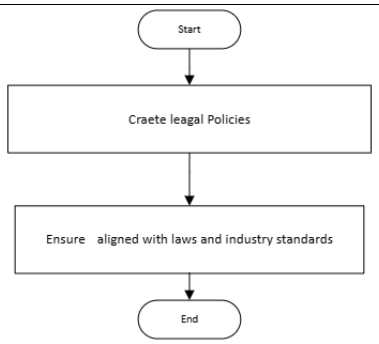
Ethical and Social Responsibility



Intellectual Property Transactions



Policy Framing



9. Process Description

9.1. Contracts and Agreements

9.1.1 Contract Drafting & Review:

a. Identify the scope, terms, and obligations of contracts.

b. Ensure legal soundness and compliance with Indian and international laws.

c. Perform risk assessment before finalizing agreements.

d. Identify liability of limitation, arbitration and jurisdiction.

9.1.2 Negotiation & Execution:

a. Engage in discussions with clients, vendors, and third parties.

b. Modify clauses to align with business interests while ensuring legal protection.

c. Obtain necessary approvals before execution.

9.1.3 Compliance Management:

a. Verify adherence to service agreements, software licenses, and partnership agreements.

b. Maintain an updated repository of executed contracts.

9.1.4 Non-Disclosure Agreements (NDAs) & Employment Contracts:

a. Draft and review NDAs for business engagements.

b. Ensure compliance with labor laws in employment agreements.

9.2. Intellectual Property (IP) Protection

9.2.1 Advisory on IP Rights:

a. Guide stakeholders on patents, copyrights, and trademarks for proprietary software and products.

9.2.2 IP Dispute Management:

b. Monitor for infringement cases.

c. Initiate legal proceedings if necessary.

9.2.3 Protection Policy Development:

a. Establish policies to safeguard trade secrets and proprietary information.

b. Implement security measures to prevent IP theft.

9.3. Regulatory Compliance

9.3.1 Legal Framework Compliance:

a. Ensure adherence to the Information Technology Act, 2000.

b. Implement data privacy measures as per PDP Bill, GDPR, and other global regulations.

9.3.2 Sector-Specific Regulations:

a. Monitor compliance with SEBI, RBI, and TRAI guidelines where applicable.

9.3.3 Labor, Tax, and Environmental Laws:

a. Ensure policies align with statutory requirements.

b. Conduct periodic audits for compliance assurance.

9.4. Data Protection and Privacy

9.4.1 Compliance Program Implementation:

c. Develop strategies for GDPR, HIPAA, and India's Digital Personal Data Protection Act, 2023.

9.4.2 Incident Management:

a. Establish protocols for handling data breaches and cybersecurity incidents.

b. Define a reporting mechanism for timely disclosures.

9.5. Dispute Resolution and Litigation

9.5.1 Dispute Handling:

a. Address contract disagreements, employee grievances, and vendor conflicts.

9.5.2 Legal Representation:

a. Represent the organization in arbitration, mediation, or litigation.

9.5.3 Government & Regulatory Investigations:

a. Respond to legal inquiries and manage regulatory investigations.

9.6. Corporate Governance

9.6.1 Corporate Structuring:

a. Provide legal guidance on mergers, acquisitions, and corporate restructuring.

9.7. Employment and Labor Laws

9.7.1 Policy Formulation:

a. Draft HR policies aligned with labor laws.

9.7.2 Employee Relations Management:

a. Handle disputes, harassment cases, and disciplinary actions.

9.7.3 EEO & Workplace Safety Compliance:

a. Monitor compliance with Equal Employment Opportunity (EEO) and workplace safety laws.

9.8. Cybersecurity and Technology Risks

9.8.1 Cybersecurity Framework Implementation:

a. Define policies for data protection and IT security.

9.8.2 Risk Mitigation:

a. Assess liabilities related to cyber-attacks, hacking, and data breaches.

9.9. International Operations and Cross-Border Issues

9.9.1 Foreign Law Compliance:

a. Ensure regulatory adherence for overseas business operations.

9.9.2 Cross-Border Data Management:

a. Handle legal aspects of data transfer, taxation, and export controls.

9.10. Licensing and Regulatory Approvals

9.10.1 License Management:

a. Secure and renew necessary approvals such as STPI and SEZ licenses.

9.11. Ethical and Social Responsibility

9.11.1 CSR Compliance:

a. Guide adherence to Section 135 of the Companies Act for corporate social responsibility.

9.11.2 Ethical Business Practices:

a. Implement whistleblower mechanisms and ethical governance policies.

9.12 Intellectual Property Transactions

9.12.1 Technology & Software Agreements:

a. Assist in technology transfer and software distribution contracts.

9.12.2 Third-Party Licensing Compliance:

a. Manage open-source software and third-party tool licensing.

9.13 Policy Framing

9.13.1 Legal Policy Development:

a. Frame policies for corporate governance, risk management, and regulatory compliance.

9.13.2 Periodic Review & Update:

a. Ensure alignment with evolving laws and industry best practices.

10 Information Security requirements

a. **Data Protection and Privacy Compliance** - All personal and sensitive information related to organization shall be securely stored and handled according to relevant data protection laws in the organizational policies

b. **Confidentiality** - Confidential information shall not be disclosed to unauthorized individuals or parties.

c. **Secure communication** - All communication channels used (e.g., emails, messaging platforms) shall be secure and encrypted wherever required.

d. **Access Control** - Restrict access to data based on the user's role and necessity.

11 References

a. SOP – Opportunity Management - UT/SM/OMP/SOP

b. Project Management Handbook - UT/IM/MSP/GDL/03

c. Employee Code of Conduct – UT/SF/RMP/TMP/04

12 Metrics

12.1 Contracts

a. Contract Drafting & Review: Complete within 5-7 business days for standard contracts; 10-15 business days for complex agreements.

b. NDA Processing: Approve and execute NDAs within 2 business days of request

12.2 Intellectual Property (IP) Protection

a. IP Dispute Resolution: Acknowledge and initiate response within 48 hours of notice

12.3 Regulatory Compliance

a. Regulatory Updates: Communicate new legal or regulatory changes within 5 business days of publication

12.4 Dispute Resolution and Litigation

a. Dispute Acknowledgment: Respond to legal disputes within 2 business days.

12.5 Employment and Labor Laws

a. HR Policy Review & Updates: Conduct annual reviews and updates.

b. Workplace Dispute Resolution: Initiate mediation within 5 business days of complaint filing

12.6 Cybersecurity and Technology Risks

a. Compliance Review: Conduct IT policy reviews every 6 months

12.7 International Operations and Cross-Border Issues

a. Legal Review for International Contracts: Complete within 10 business days.

b. Export Control Compliance Check: Perform assessments within 5 business days.

12.8 Ethical and Social Responsibility

a. CSR Compliance Reporting: Submit required reports annually.

b. Whistleblower Complaint Response: Acknowledge within 2 business days and investigate within 15 business days.

12.9 Policy Framing

a. New Policy Drafting: Deliver initial drafts within 15 business days.

b. Policy Review & Update Cycle: Conduct annual reviews for relevancy and compliance

Commented [AN1]: Indentation needs to be taken care

13 Annexures

Not Applicable

14 Forms

Not applicable